



Contract Consolidation Determination and Findings



Instructions: Complete each section then remove italicized, red text before finalizing.

1. **Purchase Request Number:** TBD
2. **Solicitation Number:** 140P8525R0002
3. **Contracting activity/agency:** National Park Service – Contracting Operations (ConOps) West
4. **Project Name:** Sierra/Mojave Multiple Award Task Order Contract (MATOC)

5. **Description of supplies or services required to meet agency needs.**

The ConOps West Major Acquisition Buying Office's, National Park Service, intends to issue a Request for Proposal (RFP) for award of a Multiple Award Task Order Contract (MATOC). A MATOC is an Indefinite Delivery, Indefinite Quantity (IDIQ) contract vehicle that can be used to accomplish a broad range of real property maintenance, repair, renovation, and construction projects for the NPS ConOps West. This includes Yosemite National Park, Devils Postpile National Monument, Sequoia National Park, Kings Canyon National Park, Cesar E. Chavez National Monument, Death Valley National Park, Manzanar National Historic Site, Joshua Tree National Park, Mojave National Preserve, Castle Mountains National Monument, Tule Springs Fossil Beds National Monument, and Lake Mead National Recreation Area. Any new NPS sites added in the future within the footprint of the area established by this MATOC will be considered part of this requirement and can be incorporated at that time.

Type of Contract	Firm-Fixed Price		
Estimated Total Value	\$45,000,000.00		
Estimated Start Date	July 01, 2025	Estimate Completion Date	June 30, 2030
NAICS Code	236220	SB Size Standard	\$45M
PSC	Z2AZ	Contract Status	New Requirement

The Sierra/Mojave MATOC will encompass a wide range of projects to include but are not limited to: new construction, repair or rehabilitation of historic and non-historic structures, site utilities work (gas, electric, communications), site improvements (trail, fence, grading, concrete work, landscaping), water & wastewater, roadway (bike, roadway, signage, striping), fire & safety systems, building exterior, building interior, HVAC, electrical, plumbing (MEP), and sustainability (energy efficiency, renewables). The project examples include renovations of historic and non-historic maintenance shops, visitor center and fee stations, upgrades to electrical, water and sewer systems and facilities, rehabilitation of fire suppression systems and safety systems, parking lot and road paving, HVAC rehabilitation, re-roofing, water, sewer and gas tank construction. The selected contractors will be responsible for all labor, supervision, engineering,

	permitting, materials, equipment, tools, parts, supplies, and transportation to perform the services described in the specifications and drawings for each individual project. The total contract ordering period shall not exceed five (5) calendar years. Task Orders may range from \$2,000.00 to \$2,000,000.00, however larger value projects may be considered. NPS anticipates a minimum of six (6) IDIQ contracts will be awarded as a result of the potential solicitation. However, NPS reserves the right to award less or more than these stated amounts as it deems necessary. The total of all task orders placed against this contract shall not exceed \$45,000,000.00 in aggregate to all contractors over the five-year ordering period.												
6.	Market Research In accordance with FAR 7.107-2, I have reviewed this requirement and associated market research and determined that consolidation of the referenced contract requirements is both necessary and justified. Market research was conducted in accordance with DOI-AAAP-0145, v03, FAR 10.0001, and 10.002. The research resulted in the following findings: <u>Dynamic Small Business Search Engine:</u> A Dynamic Small Business Search was conducted utilizing our MATOC specific requirements: NAICS 236220; located in California (CA) and Nevada (NV) ; no more than \$45 million average annual gross revenue and the bonding capacity of at least \$2 million. Additionally, the results received for CA were reduced to only the congressional districts adjacent to the locations required for this MATOC. All contractors from both CA and NV were contacted via email to notify them of the Sources Sought posted on SAM.Gov. The following table reflects specific search results within California and Nevada: <table border="1"> <thead> <tr> <th>Business Category</th><th>Count</th></tr> </thead> <tbody> <tr> <td>Small Business (SB)</td><td>112</td></tr> <tr> <td>Woman Owned Small Business (WOSB)</td><td>32</td></tr> <tr> <td>Service-Disabled Veteran Owned Small Business (SDVOSB)</td><td>15</td></tr> <tr> <td>HUBZone</td><td>4</td></tr> <tr> <td>8(a) Certified</td><td>0</td></tr> </tbody> </table> <u>Indian Affairs - Native American Businesses in SAM.gov</u> A SAM.Gov (Tableau) search was completed using NAICS 236220; located in California (CA) and Nevada (NV) for Native American Businesses. The quantity of contractors identified for CA is for the entire state and may not represent local companies willing to participate in the planned MATOC. However, all contractors from both CA and NV were contacted via email to notify them of the Sources Sought posted on SAM.Gov. The following table reflects specific search results within California and Nevada:	Business Category	Count	Small Business (SB)	112	Woman Owned Small Business (WOSB)	32	Service-Disabled Veteran Owned Small Business (SDVOSB)	15	HUBZone	4	8(a) Certified	0
Business Category	Count												
Small Business (SB)	112												
Woman Owned Small Business (WOSB)	32												
Service-Disabled Veteran Owned Small Business (SDVOSB)	15												
HUBZone	4												
8(a) Certified	0												

Business Category	Count
Indian Small Business Economic Enterprise (ISBEE)	29

Source Sought Notice:

On November 13, 2024, the Contract Specialist posted a Sources Sought notice on SAM.GOV with a due date of November 29, 2024. A total of 40 businesses responded in writing by e-mail. Each company's profile in SAM was reviewed to make sure they were active in SAM, compliant with FAR certification 52.204-24, that there were no exclusions, and that the small business representations in the sources sought response matched their SAM profile. A review was performed evaluating the capabilities of each company based on the information provided within their sources sought responses to ensure they could provide the required services. The following table provides a breakdown of responses received and those who were deemed qualified:

Business Category	Count	Qualified
Small Business (SB)	39	25
Woman Owned Small Business (WOSB)	7	4
Service-Disabled Veteran Owned Small Business (SDVOSB)	4	1
HUBZone	8	4
8(a) Certified	16	7
Indian Small Business Economic Enterprise (ISBEE)	8	3

Notes:

- Data for Economically Disadvantaged Women Owned Small Businesses (EDWOSB) were not included within the search results as this NAICS does not fall within a EDWOSB approved NAICS.
- Data for the DOI authorized set-aside Indian Small Business Economic Enterprises (ISBEE) was only available from the source sought results and the Indian Affairs Native American businesses in SAM.gov Database. Any other searches could only provide data at the IEE level, but could not be directly used in determining set-aside opportunities.

Evaluation:

Based upon the review of the firms responding to the sources sought, and the anticipated total award of a minimum of six (6) contracts, sufficient competition is not expected from each of the following socio-economic categories. Below is the summary of each business category:

- Section 8(a) Business: Sixteen (16) contractors responded to the Sources Sought Announcement. After review of the responses, seven (7) of them provided responses that were in accordance with the posting or provided the depth of experience that NPS is looking to acquire. A set-aside to 8 (a) companies has a high probability of resulting in a severely limited number of proposals from qualified contractors, putting the government at a high

	risk of not being able to meet the need of multiple awards to a qualified pool of MATOC contractors. Set-aside is not justified. • Woman Owned Small Business (WOSB): Upon review, seven (7) contractors responded to the Sources Sought Announcement, with four (4) of them providing responses that were in accordance with the posting. The SBA certified contractor pool is insufficient to bid on the MATOC. Set-aside is not justified. • Service-Disabled Veteran-Owned Small Business (SDVOSB): Upon review, four (4) contractors responded to the Sources Sought Announcement, with one (1) of them providing responses that were in accordance with the posting. The contractor pool is insufficient to bid on the MATOC. Set-aside is not justified. • HUBZone Small Business: Upon review eight (8) contractors responded to the Sources Sought Announcement. After review of the responses, four (4) of them provided responses that were in accordance with the posting or provided the depth of experience that NPS is looking to acquire. A set-aside to HUBZone companies has a high probability of resulting in a severely limited number of proposals from qualified contractors, putting the government at a high risk of not being able to meet the need of multiple awards to a qualified pool of MATOC contractors. Set-aside is not justified. • Indian Small Business Economic Enterprises: Upon review, eight (8) contractors responded to the Sources Sought Announcement, with three (3) of them providing responses that were in accordance with the posting. The contractor pool is insufficient to bid on the MATOC. Set-aside is not justified. Based on the results of the sources sought, the dynamic small business search, SAM.Gov (Tableau) search for Native American Businesses, a Total Small Business Set-Aside is suggested as an appropriate and suitable solution for this acquisition to promote competition. This recommendation is based off a comprehensive evaluation of all responses received. A Total Small Business set-aside will: • Promote and enable a high level of competition among contractors to participate in Multiple Award Task Order Contracts. • Provide competitive pricing amongst highly qualified contractors • Gain access to a broader field of contractors with the technical competency to perform the level of work needed, especially for geographically separated remote parks <u>Extent of Commerciality in the Market:</u> This requirement is for the acquisition of construction, alteration, or repair of buildings, structures, or other real property for Governmental purposes and considered non-commercial. Although while considered non-commercial in nature, commercial practices may still be used to complete tasks. <u>Conclusions and Recommendations:</u> The objective the MATOC is to provide general construction services, including repair, rehabilitation, and minimal new construction in support of the National Park Service. It is imperative to solicit highly qualified contractors, with proven past performance and capabilities,
--	---

	to accomplish this work. After a comprehensive review it is in the best interest of the Government to set this aside as a Total Small Business concern. Based on the information provided, ConOps West would like to award a minimum of six (6) contracts on the new MATOC.
7.	Any alternative contracting approaches and rationale for rejection: Alternative contracting approaches are currently being employed within ConOps West. These alternatives, although useful in certain circumstances, overall, are either cumbersome in effort, time consuming, fails to meet mission deadlines, or results in either poor competition or lack of competition. The following alternative contracting approaches have been evaluated and determined to not be the best approach: Sealed Bidding Procedures under FAR Part 14 – Sealed bidding does provide streamlined procedures for small construction requirements over the simplified acquisition threshold, however it lacks the ability to have communications or for other than price considerations to be a part of the award evaluation. Due to these reasons, FAR PART 14 Sealed Bidding is not a viable solution for a majority of the requirements to be covered by this proposed acquisition. Best Value Procedures under FAR Part 15 – For the targeted projects to be placed against this MATOC, FAR Part 15 procedures does not offer the most efficient method to be used for each of the requirements that will fall under the proposed MATOC program. The procedures used under FAR Part 15 are overly cumbersome and time consuming on Contracting, requirement customers, and offerors. FAR Part 15 procedures also increases protest risks for each of the procurements. Consolidating the effort into one large FAR Part 15 acquisition at the IDIQ level reduces the duplication of effort of full source selections for each requirement, as well as limits the protest risks to the one period after the IDIQ contract award. Due to these reasons, FAR Part 15 Best Value is not a viable solution for the requirements on an individual basis that will be covered by the contemplated IDIQ. Fish & Wildlife Service (FWS) MATOC – The FWS MATOC is currently being used throughout ConOps West, however, after several attempts of using it on multiple solicitations, the FWS IDIQ has failed to produce either fair pricing or lacked viable competition in the areas covered by this proposed acquisition. The lack of interest in ConOps West projects is most likely attributed to either the remoteness of the locations or the size of the projects. This fact is highlighted by lack of interest shown for this acquisition’s sources sought by the current FWS MATOC contract holders. Of the over 80 companies on the FWS MATOC, seven (7) responded to the sources sought. Due to these reasons, the FWS MATOC is not a viable solution for the requirements to be covered by this proposed acquisition. Bureau of Indian Affairs (BIA) C-MAC – BIA awarded a construction multiple award contract entitled C-MAC that is available for use DOI-wide and covers the entire nation. Its primary focus is for projects above \$5M as addressed in both BIA’s acquisition plan which states, <i>“The C-MAC is generally appropriate for all Indian Affairs construction requirements with Independent Government Estimates over \$5,000,000 (\$5M), for very complex construction requirements under \$5M, and for construction requirements of any dollar value in regions without a regional Multiple Award Task Order Contract (MATOC) vehicle in place. MATOC strategic vehicles are</i>

	<i>available in Northwest Region, Great Plains Region, Navajo Region, and Western Region. In those regions, the regional MATOC should be considered for requirements under \$5M before the C-MAC is considered".</i> The focus of ConOps West IDIQ is for acquisitions valued below \$5M, with the majority falling in the \$25K to \$2M range. Although BIA does not prohibit the usage of the C-MAC below \$5M, being that the focus is on larger projects, interest in smaller projects in remote locations could be limited and produce minimal to no competition. This aspect is further highlighted by the fact that only one (1) of the thirteen (13) BIA awardees responded to the sources sought for this acquisition. The award of the ConOps West IDIQ is to establish a regional MATOC to address the under \$5M requirements the way BIA is currently addressing those size of requirements. Due to these reasons, the BIA C-MAC is not a viable solution for the requirements to be covered by this proposed acquisition Non-consolidated IDIQs – Single trade IDIQs, such as roofing, flooring, and paving, have been established on small scales at some of the parks. The Region does not have the manpower to establish large scale construction IDIQs across each of these parks. Awarding IDIQs at each of the parks would unnecessarily duplicate effort without adding any true benefit to NPS. In addition, breaking out the work covered under the MATOCs into smaller categories of work covered would also provide no additional benefit as many of the companies that would propose would be the same based on past histories. Due to these reasons, non-consolidated IDIQs are not a viable solution for the requirements to be covered by this proposed acquisition
8.	Any negative impact by the acquisition strategy on contracting with small business concerns has been identified: During the sources sought, the respondents were asked to provide feedback of any possible negative effects this MATOC could have on their business. Out of the forty (40) respondents, eighteen (18) companies provided additional feedback. Thirteen (13) respondents stated that a consolidation poses no concerns or would impact their companies. Three (3) respondents stated that a consolidation is preferred, and it would enhance operation efficiency and cost savings. One (1) respondent stated that their preference would be for the MATOC only cover the Sierra parks but did not mention that they would not be interested if the solicitation was issued for all the projected sites. One (1) other company responded that they had concerns of being able to propose on larger projects due to their smaller business size. Their focus to date had primarily been on smaller projects. They currently do not have the bonding to tackle larger projects.
9.	Considerations, Facts, and Reasoning Supporting the Determination: On 12 April 2017, the Office of Management and Budget released memo 17-22 as a response in fulfilling the requirements of the January 2017 Hiring Freeze Presidential Memorandum and the March 2017 Reorganization Executive order. Section 111 para B "restructure and merge activities" provides direction from the Director of OMB to assess what activities can be restructured, streamlined, and merged to improve the efficiency, timeliness, and quality of services. It also encourages agencies to reduce the duplication of activities of functions across multiple parts of the organization and reduce redundant levels of management or administrative support. The purpose of this MATOC is to do as the Director request by consolidating ConOps

West contracting construction activities in order to streamline and merge functions in order to improve efficiency and timeliness of as well as reduce the duplication of activities in writing construction contracts within the ConOps West offices that service the included parks.

Agency Benefits to the Consolidation:

- It is the intent of the ConOps West Contracting offices to compete all construction requirements, but with a shortage of Contracting Officers, Program Managers, funding and the fact we are frequently operating during continuing resolutions, the trend of receiving construction requirements past the end-of-year cutoff continues to happen with no end in sight for the foreseeable future. When a package is received past the cutoff date, it has become a regular practice to use any of the established sources to complete the requirement with a compressed acquisition timeline. This MATOC will allow a reduced Procurement Acquisition Lead Time (PALT) on all of its actions versus non-MATOC requirements. The current FY cutoff date for construction requirements greater than \$500,000 is February 8, 2025, and \$250,000 - \$500,000 is April 18, 2025. In the future, the MATOC efficiencies will allow both cutoff dates to be pushed back to as late as the May and July, respectively, for competition and award against this MATOC. This later cutoff date will allow customer more time to prepare their requirement and help offset the trend towards later funds distribution from the Department.
- The MATOC will provide for standardized quality elements and performance standards. Currently, CORs inspect multiple single award contracts, which may have differing inspection components for each contract for similar skill sets. Although the requirement will be customized at the task order level, utilizing consistent consolidated contracts will provide for better monitoring and standardization of key performance elements as defined in the base contracts. Improved quality, output consistency, and standardized inspections are all efficiencies projected with the proposed consolidated strategy.
- Under the strategy of separate contracts, acquisition cycle times are multiplied due to differing period of performances, contract lengths, and unplanned requirements. A MATOC will reduce the number of contracts to approximately six (6) contractors which will provide for much greater and more efficient program management for the planning, issuance, and management of task orders.
- The MATOC will allow for emergency work to be performed under it, allowing for an expedited contracting process.
- Transparency would be established with the use of standardized evaluation criteria at the task order level. Standardized processes would result in more efficient and effective estimating and fixed-price construction.
- Improvements to independent government cost estimating and performing technical evaluations may be accomplished with an increased familiarization of the process for park program managers and contract officer representatives. In turn, there is a potential for a

	reduction in the number of mistakes in bids as contractors become accustomed to the layout and process of providing an offer, submittals, and payroll submission. • Efficiencies will be gained in how site visits are accomplished. With the isolated locations of parks and progresses in technology, the park sites have the ability to conduct pre-bid visits remotely allowing more offers to participate and increase competition. • The region currently utilizes small business for majority of its construction requirements. Since this MATOC is intended as a small business set-aside, all orders placed against it will go towards fulfilling the region's Small Business goals. The MATOC is anticipated to be used for the majority of the construction projects, which should result in an increase to the construction work being performed by small businesses within the region. In fact, due to typical performance requirements of this MATOC, i.e., the number of task orders the MATOC contractors must be capable of accomplishing simultaneously; geographical coverage area; etc., sub-contracting a large portion of almost every task order to other local small business concerns, is essentially a pre-requisite for successful performance as a MATOC contractor. Although there will be approximately six (6) contracts awarded, the sub-contracting opportunities for local small businesses are anticipated to be high and we anticipate little impact to the local small businesses since we anticipate all primes and subs to be small businesses. • Steps have been taken to include small business concerns in the acquisition strategy for this contract. It is our intent, and a major consideration, that the selected MATOC contractor(s) will be a general contractor capable of self-performing a minimum of 15% of the work for typical task orders. Historically, the remaining portion of the work is generally subcontracted out to local small business concerns, with the Construction MATOC contractor functioning as the prime contractor.
10.	Summary: It is my determination that the consolidation required by this contract is necessary and justified, because the benefits of proceeding with this acquisition substantially exceeds the benefits that would be derived from any of the alternative contracting approaches identified above. In addition, access to the use of a MATOC procurement vehicle enhances and improves the ability of acquisition personnel to successfully meet the maintenance, repair, alteration, and construction needs of Parks in a timely and cost-effective manner.
Approvals	
All supporting data provided, and the contents of this justification are complete and accurate to the best of my knowledge and belief.	
CONTRACTING OFFICER CERTIFICATION: ERIC JORDAN Contracting Officer Digitally signed by ERIC JORDAN Date: 2024.12.17 10:35:47 -07'00' Date	

HEADQUARTERS SMALL BUSINESS SPECIALIST CERTIFICATION:

**CYNTHIA HALL-
ADONOO**

Digitally signed by CYNTHIA
HALL-ADONOO
Date: 2025.01.29 08:37:38 -05'00'

Headquarters Small Business Specialist

Date

**DIRECTOR, OFFICE OF SMALL AND DISADVANTAGED BUSINESS UTILIZATION
CERTIFICATION:**

COLLEEN FINNEGAN

Digitally signed by COLLEEN FINNEGAN
Date: 2025.02.27 15:46:24 -05'00'

Director, Office of Small and Disadvantaged Business Utilization

Date

SENIOR PROCUREMENT EXECUTIVE

Upon the basis of the findings above, I hereby determine, pursuant to the authority of FAR 7.107-2, that the consolidation of contract requirements is both necessary and justified.

MEGAN OLSEN

Digitally signed by MEGAN OLSEN
Date: 2025.03.06 07:42:53 -05'00'

Senior Procurement Executive

Date